

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.'S RESPONSE TO
RESPONDENT SM LINE CORPORATION'S SUPPLEMENTAL PROPOSED FINDING
OF FACTS**

Samsung Electronics America, Inc. (“SEA” or “Complainant”) submits this Response to SM Line Corporation’s (“SM Line” or “Respondent”) Supplemental Proposed Findings of Fact (“SRPFF”).¹

A. MR. YOON JAI LEE’S (“YJ LEE”) POSITIONS AT SM LINE

SEA Response to SRPFF Header A: This not a fact and not supported by any citations or evidence.

1. **SM Line SRPFF 1:** Mr. Lee was employed at SM Line from January 2017 through November 2022. (RX_0004729: YJ Lee Dep. Tr. 22:9-14).

SEA Response to SRPFF 1: Admitted.

2. **SM Line SRPFF 2:** Mr. Lee held the position of head of the U.S. subsidiary of SM Line from 2017 to January 2021 and the position of head of sales division in Seoul from 2021 to November 2022. (RX_0004729: YJ Lee Dep. Tr. 22:16-22).

SEA Response to SRPFF 2: Admitted.

3. **SM Line SRPFF 3:** While at SM Line’s Seoul office, Mr. Lee had several departments reporting to him: sales and marketing, vessel operations, and operations. (RX_0004732: YJ Lee Dep. Tr. 25:1-6).

SEA Response to SRPFF 3: Admitted in part and denied in part. Admitted that Mr. Lee had some type of oversight of certain departments within SM Line. Denied in that it is unclear from Mr. Lee’s testimony as to the extent of that oversight. During his deposition, Mr. Lee described his role of head of sales in Seoul as “overseeing the sales organization,” “overseeing overall performance at the corporate level,” and that he had departments “under” him and named sales,

¹ Respondent uses the abbreviation “SRPFF.” Although it appears, based on SM Line’s title, that the acronym should be “RSPFF,” Complainant continues the use of “SRPFF” herein for continuity with Respondent’s filings.

marketing and vessel operations, and operations. Mr. Lee did not clarify that these departments reported to him and several times attempted to distance himself from direct decision-making authority. *See* RX_0004730-0004732, 0004733-0004736: YJ Lee Dep. Tr. 23:13-25:10, 26:18-29:3.

4. **SM Line SRPFF 4:** Within SM Line, the Operations Department was the one primarily responsible for developing demurrage and detention policies. (RX_0004732: YJ Lee Dep. Tr. 25:7-11).

SEA Response to SRPFF 4: Admitted in part and denied in part. Admitted to the extent that the role of SM Line’s Operations Department in developing demurrage and detention policies has already been introduced in both the Complainant’s and Respondent’s Proposed Findings of Fact and associated responses. *See* Dkt 102 ¶¶ 48, 126, 233; Dkt 103 pg. 8; Dkt 104 ¶¶ 48, 124, 125, 126, 225, 233; Dkt 109, ¶¶ 77, 105, 106. Denied regarding the use of the modifier “primarily” and to the extent that Mr. Lee’s deposition provides any additional clarity regarding the role of the SM Line Operations Department. Also denied as out of scope, as information defining the role of SM Line’s Operations Department was available to SM Line prior to the submission of their Proposed Findings of Fact on May 28, 2024, should have been included therein, and thus is an improper subject of this supplemental briefing. *See* Dkt. 105.

5. **SM Line SRPFF 5:** Mr. Lee’s responsibilities included reviewing recommendations relative to SM Line’s policies on demurrage and detention received from the leader of the operations team and determining whether to approve them and submitting them to SM Line’s CEO who had ultimate authority on enacting the policies. (RX_0004730-4731: YJ Lee Dep. Tr. 23:13-24:20; RX_0004733: YJ Lee Dep. Tr. 26:18-25).

SEA Response to SRPFF 5: Admitted in part and denied in part. Admitted in that, as recounted by other SM Line witnesses and previously introduced in the record, Mr. Lee had some responsibility of SM Line's demurrage and detention policies. Denied in that SRPFF 5 is not supported by the substance of Mr. Lee's deposition. Mr. Lee did not clearly testify that his responsibilities included reviewing demurrage and detention policy recommendations and determining whether to approve them and submit them to the SM Line CEO. *See* RX_0004730-4731: YJ Lee Dep. Tr. 23:13-24:20; RX_0004733: YJ Lee Dep. Tr. 26:18-25. Also denied in that the proposed fact omits key portions of Mr. Lee's testimony in which he minimizes his involvement with managing the operations team. *See, e.g.,* RX_0004735: YJ Lee Dep. Tr. 28:20-22 ("So I would not know everything that the operations team does, but I would give some general guidelines"); RX_0004734: YJ Lee Dep. Tr. 27:18-20 ("if there's any direct instruction from the CEO, then they will skip me over and it would go to the CEO directly"). Mr. Lee also testified that, from approximately mid-October 2022 to his departure from SM Line in November 2022, he "didn't pay particular attention to the work at the company because [he] was going to leave the company" and that demurrage and detention would "not be in the scope of these matters that [he] would need to pay attention to." RX_0004766-67: YJ Lee Dep. Tr. 59:14-16; 60:16-19.

6. **SM Line SRPFF 6:** During Mr. Lee's tenure as head of sales division in Seoul the operations team had two leaders: initially the leader was Songil Kim who was then replaced by Sung-Hyun Kim. (RX_0004733: YJ Lee Dep. Tr. 26:5-17).

SEA Response to SRPFF 6: Admitted.

7. **SM Line SRPFF 7:** As part of his role overseeing the operations team, Mr. Lee would reject any proposal that he didn't consider proper and tell the team manager to re-review or re-evaluate. (RX_0004734: YJ Lee Dep. Tr. 27:9-14).

SEA Response to SRPFF 7: Denied. The proffered evidence does not support this proposed fact. Mr. Lee never testified that he would “reject any proposal that he didn’t consider proper.” In the referenced deposition testimony, Mr. Lee stated, “If there’s something wrong with it [referring to ‘recommendations from the operation team’ as stated in the preceding question], I would reject those and tell them to re-review or re-evaluate.” SEA also incorporates by reference its response to SRPFF 5, which explains that Mr. Lee’s testimony is not probative on demurrage and detention policy, because he testified that he had minimal oversight of these policies and did not pay attention to demurrage and detention at all after early October 2022.

8. **SM Line SRPFF 8:** Mr. Lee would offer guidance and comments on the overall demurrage and detention policy of SM Line for all regions, including the United States. (RX_0004736: YJ Lee Dep. Tr. 29:15-22).

SEA Response to SRPFF 8: Denied. SEA incorporates by reference its response to SRPFF 5 and 7, that Mr. Lee’s testimony is that he was not directly involved in overseeing SM Line’s demurrage and detention policies.

9. **SM Line SRPFF 9:** Specifically with respect to the United States, Mr. Lee gave instructions to review SM Line’s policies on demurrage and detention after the enactment of OSRA in 2022. (RX_0004737-4738: YJ Lee Dep. Tr. 30:25-31:18).

SEA Response to SRPFF 9: Denied. The fact as stated omits key portions of Mr. Lee’s testimony that contradict the cited portion, and in which he distances himself from direct involvement in SM Line’s demurrage and detention policies. For example:

“Q. And did your responsibilities as head of sales involve demurrage and detention policies of SM Line?” RX_0004731: YJ Lee Dep. Tr. 24:7-8.

“A. In part; however I am – I originated from sales. So the direct responsibilities were handled by people under me.” RX_0004731: YJ Lee Dep. Tr. 24:9-11.

“Q: Would it be fair to say that you were involved with the demurrage and detention policy decision-making process at SM Line?” RX_0004735: YJ Lee Dep. Tr. 28:12-14.

“A: It is part of my responsibilities, but as I said earlier, my background is in sales and marketing. So I would not know everything that the operations team does, but I would give some general guidelines.” RX_0004735: YJ Lee Dep. Tr. 28:19-22.

10. **SM Line SRPFF 10:** Any modification to SM Line’s demurrage and detention policy as applied in the US, including those enacted in response to OSRA 2022, would be published by SM Line in the respective tariffs as required under US regulations. (RX_0004739-4740: YJ Lee Dep. Tr. 32:15-33:21).

SEA Response to SRPFF 10: Denied. Outside the scope of the order as it is unsupported by Mr. Lee’s testimony. The cited section commences with the examining attorney asking Mr. Lee if he recalls any report or actions taken in response to a review of detention and demurrage policies following modifications to OSRA in 2022. Mr. Lee responded by pontificating on what may have happened but it is clear from his testimony that he is uncertain, “I would believe that SM Line would have those documents...So if they were, then they would have been published in the general tariffs. And, other than that, you might want to – you know, for that, I think you might want to ask SM Line directly.” RX_0004739-4740: YJ Lee Dep. Tr. 32:22-33:4. This is far from a definitive statement regarding SM Line’s publishing of any policy modifications in tariffs or compliance with U.S. regulations.

B. THE REJECTION OF THE DEMURRAGE AND DETENTION IMPROVEMENT PLAN

SEA Response to SRPFF Header B: Denied. SM Line’s assertion is not supported by any citations or evidence.

11. **SM Line SRPFF 11:** While he was head of the sales division in Seoul, Mr. Lee gave instructions to the teams reporting to him to review SM Line’s policies for all regions, including the US, with the goal of addressing the logistics issues created by the COVID pandemic. (RX_0004780-4781: YJ Lee Dep. Tr. 73:9-74:7).

SEA Response to SRPFF 11: Denied. The proffered fact is unsupported by Mr. Lee’s testimony. Mr. Lee’s cited testimony is difficult to follow because he changes his position several times and refers to nonexistent, “earlier” statements. *See* RX_0004778-RX_0004782: YJ Lee Dep. Tr. 71:2-75:16. In the portion referred to by SRPFF 11, Mr. Lee stated that he gave an instruction to review “in an overall sense,” that he was referring to “general high-level circumstances” in the market. RX_0004780: YJ Lee Dep. Tr. 73:15, 20. He stated that it was in the period after COVID and, at that time, there was “a lot of confusion in the market in terms of logistics.” However, Mr. Lee did not testify that his instructions were with the specific goal of “addressing the logistics issues created by the COVID pandemic.” RX_0004780: YJ Lee Dep. Tr. 73:23-24; SRPFF 11. Additionally, SEA incorporates by reference its response to SRPFF 5 and 7, incorporated by reference.

12. **SM Line SRPFF 12:** Mr. Lee discussed the difficulties that were present on the market with the team leader of the operations team at that time: Mr. Sung-Hyung Kim. (RX_0004778-79: YJ Lee Dep. Tr. 71:2-72:13).

SEA Response to SRPFF 12: Denied. The proffered fact is unsupported by Mr. Lee’s testimony. In the cited section, the examining attorney questioned Mr. Lee about the D&D Improvement Plan in the original Korean version (Deposition Exhibit 6). Mr. Lee’s response is referring to

alleged discussions he had with Mr. Kim leading to the creation of the D&D Improvement Plan. Mr. Lee testified, “I don’t remember exactly when it was, but I think it was – I talked to him quite a while before this period that he looks into this. I have a vague recollection about that.” RX_0004778: YJ Lee Dep. 71:10-13. Mr. Lee did not testify to specifically remembering discussions with Mr. Kim on “the difficulties that were present on the market with the team leader of the operations team at that time.” SRPFF 12. Additionally, SEA incorporates by reference its response to SRPFF 5 and 7, incorporated by reference.

13. **SM Line SRPFF 13:** As part of that discussion, Mr. Lee instructed Mr. Sung-Hyun Kim to come up with solutions to improve on the market difficulties tied to the disruptions caused by COVID. (RX_0004780-4781: YJ Lee Dep. Tr. 73:25-74:7).

SEA Response to SRPFF 13: Denied. The proffered fact is unsupported by Mr. Lee’s testimony. Mr. Lee testified that, “the instructions I gave was to come up with the solutions to improve on *this*.” RX_0004781: YJ Lee Dep. Tr. 74:5 (emphasis added). The “this” to which Mr. Lee is referring is the review of “general high-level circumstances” discussed in SEA’s response to SRPFF 11. *Supra*. In his deposition, Mr. Lee did not testify as to any specific directions or instructions he gave to Mr. Kim. Additionally, SEA incorporates by reference its response to SRPFF 5 and 7, incorporated by reference.

14. **SM Line SRPFF 14:** Pursuant to this oral instruction from Mr. Lee, Mr. Sung-Hyun Kim begun working on a proposal to alleviate the inefficiencies that the process of moving cargo in the Unites [sic] States was showing. (CX_000676-677; Sung Hyun Kim Tr. 23:3-24:15).

SEA Response to SRPFF 14: SEA objects to SRPFF 14 because it exceeds the scope of the Supplemental Briefing Order, does not purport to rely on new evidence from the testimony of Mr. Lee, and is not otherwise supported by the testimony of Mr. Lee. SRPFF 14 is otherwise denied.

15. **SM Line SRPFF 15:** Mr. Sung-Hyun Kim worked on the proposal alone and did not consult with other colleagues. (CX_000676; Sung Hyun Kim Tr. 23:7-11).

SEA Response to SRPFF 15: SEA objects to SRPFF 15 because it exceeds the scope of the Supplemental Briefing Order, does not purport to rely on new evidence from the testimony of Mr. Lee and is not otherwise supported by the testimony of Mr. Lee. SRPFF 15 is otherwise denied.

16. **SM Line SRPFF 16:** Mr. Sung-Hyun Kim presented to Mr. Lee a draft document in Korean in response to Mr. Lee's oral instruction. (CX_000681; Sung Hyun Kim Tr. 28:11-16; RX_0004609).

SEA Response to SRPFF 16: SEA objects to SRPFF 16 because it exceeds the scope of the Supplemental Briefing Order, does not purport to rely on new evidence from the testimony of Mr. Lee, and is not otherwise supported by the testimony of Mr. Lee. SRPFF 16 is otherwise denied. SRPFF 16 is contradicted by Mr. Lee's testimony that he had a "vague recollection" of talking to Mr. Kim "quite a while before" Mr. Kim was looking into the matter, e.g., before the D&D Improvement Plan was prepared, and that at best "maybe" he had seen "something similar" or "maybe a draft" at some point in time before the D&D Improvement Plan was prepared. Mr. Lee testified that he talked to "the team leader of SELCON at the time, Son Yong Kim -- I don't remember exactly when it was, but I think it was -- I talked to him quite a while before this time period that he looks into this. I have a vague recollection about that." YJ Lee Dep. Tr. 71:8-13. When the October 28, 2022, D&D Improvement Plan in the original Korean language version (Exhibit 6) was introduced during his deposition, Mr. Lee testified that "I am telling you clearly that I haven't seen -- I don't remember seeing this document." But he testified that he might have seen something similar, "it might be a similar document to this, maybe a draft of it, but not this document, but I haven't seen this document." YJ Lee Dep. Tr. 75:7-14.

17. **SM Line SRPFF 17:** SEA translated the title of the Korean document presented by Mr. Sung-Hyun Kim to Mr. YJ Lee as “2022 DEM/DET Management Improvement Plan Report” (“Plan”). (CX_004742).

SEA Response to SRPFF 17: SEA objects to SRPFF 17 because it exceeds the scope of the Supplemental Briefing Order and does not purport to rely on new evidence from the testimony of Mr. Lee. The English translation of the 2022 DEM/DET Management Improvement Plan has been available to SM Line since well before the close of discovery on February 28, 2024. SRPFF 17 is otherwise denied. The testimony of Mr. Lee does not support the proposition that the D&D Improvement Plan “was presented by Mr. Sung-Hyun Kim to Mr. YJ Lee,” because Mr. Lee testified that he had never see the Korean version of the D&D Improvement Plan.

18. **SM Line SRPFF 18:** When Mr. Lee saw a draft of the Plan in Korean, Mr. Lee reviewed it and rejected it as it was not in line with the business practice in the US and was not in line with the regulations. (RX_0004778-4779: YJ Lee Dep. Tr. 71:2-72:1).

SEA Response to SRPFF 18: Denied. (1) Mr. Lee testified that he had never seen the D&D Improvement Plan presented in this proceeding, in English or in Korean, and testified that “maybe” he had seen a draft or a similar document, but unequivocally not the D&D Improvement Plan. *See* Response to SRPFF 16. Even after being shown the Plan in Korean during his deposition, Mr. Lee testified that “I am telling you clearly that I haven’t seen – I don’t remember seeing this document, but it might be a similar document to this, maybe a draft of it, but not this document, but I haven’t seen this document.” RX_0004782: YJ Lee Dep. Tr. 75:7-14. (2) Mr. Lee did not testify that he reviewed the D&D Improvement Plan, and he denied at least five times that he had any knowledge of the document. (3) As to the purported “rejection,” Mr. Lee testified that he a vague recollection of rejecting a proposal at some earlier time, but specifically that he

did not know what SM Line ultimately did with any proposal. He stated, “I don't remember exactly when it was, but I think it was -- I talked to him quite a while before this time period that he looks into this. I have a vague recollection about that.... So I remember rejecting this. But before my leaving the company, I don't know who he talked to, and I don't know about the process afterwards...” YJ Lee Dep. Tr. 71:10-14. Whatever Mr. Lee may have “rejected,” he testified that it occurred well before the October 26, 2022, D&D Improvement Plan at issue: “early -- or in the beginning.” When asked, “When you say you talked earlier about this, did you -- is your testimony that you saw [the D&D Improvement Plan] and talked about it or perhaps saw an earlier version of this and talked about it earlier?” Mr. Lee testified that he was not referring to any draft of the D&D Improvement Plan at all, “No, that's not what I was referring to. What I was referring to was not specific to this. What I was referring to was the general high-level circumstances at the time in the market because the market was in a very confused state. Not only U.S., but China, as well as other regions. My instruction was to review all of the regions in an overall sense to address these issues and, of that, U.S. was included, not only U.S., but as well as other regions. Because it was after COVID. It was post COVID. So there was a lot of confusion in the market in terms of logistics.” YJ Lee Dep. Tr. 73:9-24.

19. **SM Line SRPFF 19:** Mr. Lee specifically recalled that the document was way too aggressive and did not reflect the original intent of demurrage and detention. (RX_0004778: YJ Lee Dep. Tr. 71:14-17).

SEA Response to SRPFF 19: Denied. See Response to SRPFF 18, incorporated by reference. Mr. Lee’s testimony was about some other earlier communication or document—none of which were produced by SM Line, and to the extent they existed, were allegedly destroyed by SM Line.

Mr. Lee clarified that he had not used the term “aggressive” in connection with the actual D&D Improvement Plan. YJ Lee Dep. Tr. 72:22-73:6.

20. **SM Line SRPFF 20:** While Mr. Lee was not sure as to the version of the Plan he saw, he testified that he did see one version that was similar to the one presented to him during his deposition and had rejected it. (RX_0004782-4783: YJ Lee Dep. Tr. 75:20-76:13).

SEA Response to SRPFF 20: Denied. Mr. Lee did not testify that he saw *any version* of the D&D Improvement Plan. At best he testified that he “might” have seen “a similar document to this, maybe a draft of it...,” YJ Lee Dep. Tr. 75:7-14, and Mr. Lee did not testify that he rejected *any version* of the D&D Improvement Plan, but rather that he had a “vague recollection” of talking with Mr. Kim long before the October 26, 2022, D&D Improvement Plan. If anything that Mr. Lee might have rejected in a discussion with Mr. Kim at that earlier time was reflected in the October 26, 2022, D&D Improvement Plan, the Operations Team apparently did not adopt Mr. Lee’s earlier comments, and it is clear from Mr. Lee’s testimony that he did not reject the October 28, 2022, D&D Improvement Plan at the time, or thereafter. SEA incorporates by reference its response to SRPFF 5, 7, and 18. Additionally, when Mr. Lee was asked if he has seen any draft or version before or after October 26th, Mr. Lee responded that he did not know, but that there would have been communications and drafts. He testified, “these reports would be prepared through several rounds of these processes...” YJ Lee Dep. Tr. 75:24-76:8. As discussed in Complainant’s Supplemental Reply Brief Regarding the Deposition of Mr. Yoon-Jai “Mark” Lee, SM Line has not produced other versions, drafts, or communications in connection with the D&D Improvement Plan, which SM Line represents were destroyed. Mr. Lee’s testimony on this point relies on the existence of alleged communications and drafts to corroborate his testimony that he “maybe” saw, evidence that SM Line represents it destroyed. As more fully addressed in SEA’s

pending Spoliation Motion, SM Line should not be permitted to rely on evidence that it did not produce, and indeed reportedly destroyed, as alleged support for Mr. Lee's testimony or the proffered SRPFFs.

21. **SM Line SRPFF 21:** Mr. Sung-Hyun Kim understood that Mr. Lee had rejected the draft of the Plan after having presented it to him. (CX_000682-684; Sung Hyun Kim Tr. 29:17-31:1).

SEA Response to SRPFF 21: SEA objects to SRPFF 21 because it exceeds the scope of the Supplemental Briefing Order, does not purport to rely on new evidence from the testimony of Mr. Lee, and is not otherwise supported by the testimony of Mr. Lee. SEA also incorporates by reference its response to SRPFF 14.

22. **SM Line SRPFF 22:** Both Mr. Lee and Mr. Sung-Hyun Kim testified that they believe that once the Plan had been rejected by Mr. Lee, the document was not implemented, and no further versions of that document were created. (RX_0004783: YJ Lee Dep. Tr. 76:2-13; CX_000684; Sung Hyun Kim Tr. 31:2-4).

SEA Response to SRPFF 22: SEA objects to SRPFF 22 because it exceeds the scope of the Supplemental Briefing Order, does not purport to rely on new evidence from the testimony of Mr. Lee, and is not otherwise supported by the testimony of Mr. Lee. To the extent the SRPFF 22 cites Mr. Kim's testimony, Mr. Lee contradicts the proposed finding of fact. Mr. Lee testified that he did not know what SM Line did later in the connection with the D&D Improvement Plan, and he specifically testified that he was not involved with the subsequent revisions to the SM Line D&D Policy dated November 18, 2022, because "I left the company on November 15." YJ Lee Dep. Tr. 59:2-8. Mr. Lee also testified that he was not involved with the modifications reflected in the November 18, 2022, revisions "because even before my departure, from 14 around October, from the mid part of October and on, I didn't pay particular attention to the work at the company

because I was going to leave the company,” YJ Lee Dep. Tr. 59:9-16. Further, the evidence in the record establishes that each of the specific recommendations contained in the D&D Improvement Plan dated October 26, 2022, was in fact implemented in the November 18, 2022, updates to the SM Line D&D Policy. Version 4 of SM Line’s DEM/DET Management Procedures (the “D&D Policy”) was dated June 2, 2021. CX_004637, 39. The D&D Improvement Plan was dated October 26, 2022. The D&D Improvement Plan—in addition to the statements against interests reflecting SM Line’s then existing practices and objectives for D&D in the U.S. to maximize revenue, etc.—contained three categories of recommendations for the D&D Policy. As shown in detail in Enclosure (1) hereto, incorporated herein by reference, each of these recommendations were in fact implemented in the November 18, 2022 update (version 5) of the D&D Policy.

Dated: January 7, 2025

Respectfully submitted,

HOLLAND & KNIGHT LLP

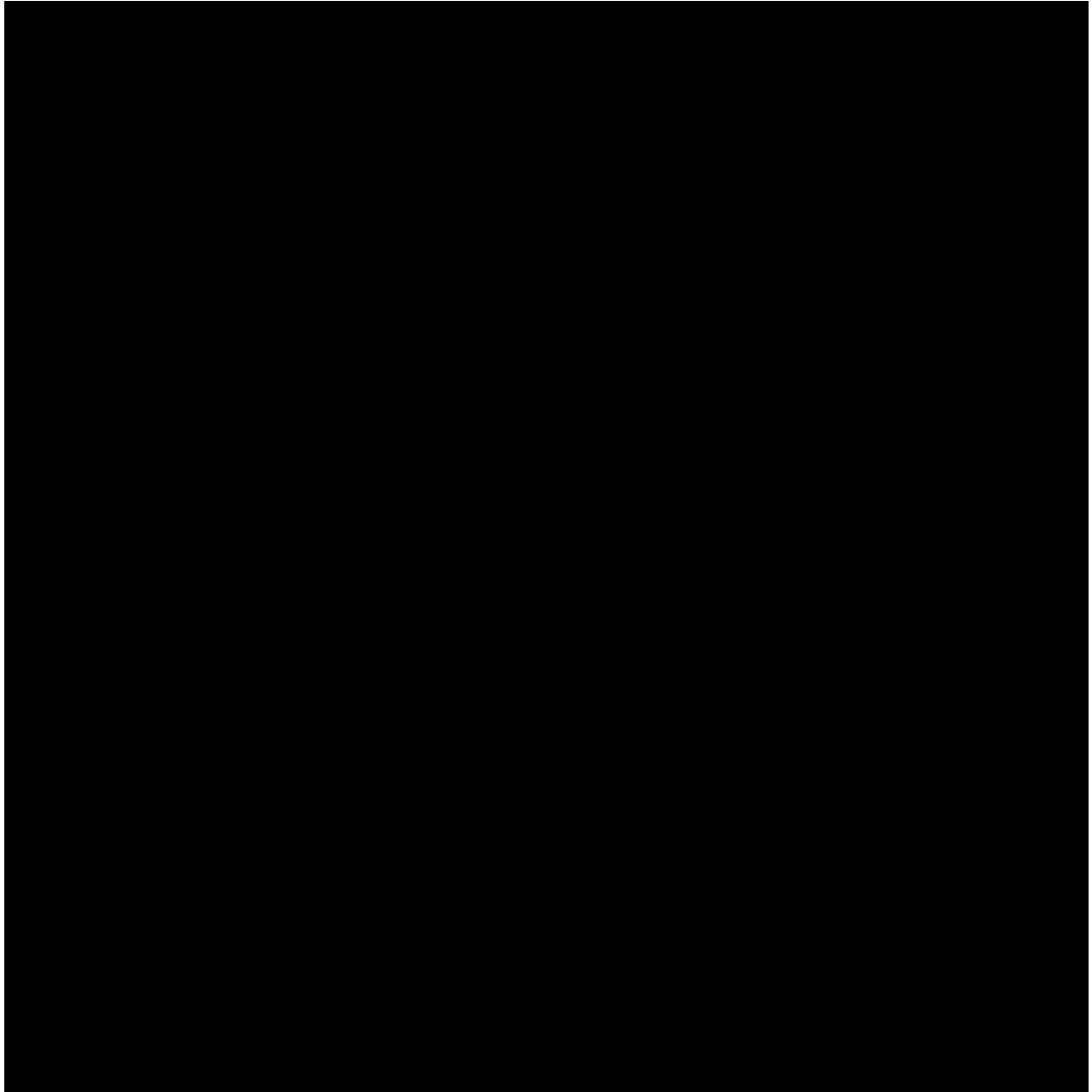
By: /s/ Christopher R. Nolan

Christopher R. Nolan
Allison N. Skopec
Chiara Kalogjera-Sackellares
HOLLAND & KNIGHT LLP
31 West 52nd Street
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
allison.skopec@hklaw.com
chiara.sackellares@hklaw.com

Gerald A. Morrissey III
Carrol P. Hand
Kristine O. Little
HOLLAND & KNIGHT LLP
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
gerald.morrissey@hklaw.com
carrol.hand@hklaw.com
kristine.little@hklaw.com

Enclosure (1)

Implementation of D&D Improvement Plan



² CX_004746. The illustrated implementation of this recommendation in the table contains only a small excerpt, as the DEM/DET collection methods are several pages long. The entirety of these methods is identical from V4 to V5 of the DEM/DET Procedures

³ CX 004649

⁴ CX 004700

⁵ CX_004747

⁶ CX 004706

⁷ CX_004748

⁸ CX 004657-58.

⁹ CX 004707

¹⁰ CX 004707

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th Day of January 2025, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

Respondent SM Line Corporation
C/O Montgomery McCracken Walker & Rhoads LLP
427 Madison Avenue, 24th Floor
New York, New York 10022

Wook Chung
wchung@mmwr.com

Vincent M. DeOrchis
vdeorchis@mmwr.com

Kaspar Kielland
kkielland@mmwr.com

Matteo Bonuzzi
mbonuzzi@mmwr.com

Layal Ramirez
lr Ramirez@mmwr.com

/s/ Christopher R. Nolan